



Landmark Credit Union

Statement of Work

DIGITAL FOUNDATIONS

Prepared For:

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Prepared On:

April 28, 2023

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Executive Overview

Landmark Credit Union is partnering with nvisia to accelerate a sustainable Cloud Native DevOps capability, including an Azure Hub and Spoke architecture built with proven Infrastructure as Code (IaC) modules and deployed using Azure DevOps pipelines. nvisia will offer this as a part of their Digital Foundations Service offering.

nvisia's Digital Foundations service was developed to help your organization quickly and efficiently build a secure, compliant, and scalable cloud infrastructure. With the pre-built, customizable infrastructure as code platform, your organization can significantly reduce the time and effort required to build a cloud infrastructure from scratch. The program includes hands-on training and run books for your team to maintain and extend the platform over time. With Digital Foundations services, your organization can improve its agility, reduce risk, and free up resources to focus on delivering innovative products and services to your customers. The nvisia team's expertise and experience can help your organization avoid costly mistakes and security breaches while accelerating your time-to-market. With Digital Foundations, your organization can establish a solid foundation for your cloud infrastructure that can support your growth and success for years to come.

nvisia Digital Foundations Service includes intellectual property that allows this to be done on an accelerated timeline of three months at a fixed cost of \$225,000. Landmark and nvisia have previously met to discuss the IP and agree it is a good fit for Landmark's infrastructure needs (the "Digital Foundations Software"). nvisia shall license to Landmark the current iteration and release of Digital Foundations Software in accordance with the terms and conditions of the Addendum to CSA dated the 26 day of May, 2023 (the "Addendum") which provide the terms and conditions of the Digital Foundations Software license and related matters which are paramount and controlling over the terms and conditions of the CSA with respect to all matters relating to the provision of Digital Foundations Software and related services. This SOW is a Digital Foundations SOW for purposes of the Addendum.

THE DIGITAL FOUNDATIONS SOFTWARE IS PROVIDED BY NVISIA TO LANDMARK ON AN "AS IS," "WHERE IS" BASIS, WITHOUT ANY IMPLIED WARRANTIES OF ANY KIND, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. LANDMARK AS A LICENSEE ASSUMES THE ENTIRE LIABILITY FOR THE SELECTION AND USE OF THE DIGITAL FOUNDATIONS SOFTWARE, AND NVISIA SHALL HAVE NO LIABILITY FOR ANY ERRORS, MALFUNCTIONS,

DEFECTS OR LOSS OF DATA RESULTING FROM OR RELATED TO THE USE OF THE DIGITAL FOUNDATIONS SOFTWARE.

All copies of the Digital Foundations Software, in whole or in part, shall contain all nvisia's copyright restrictions and other proprietary notices as they appear on the copies of the Digital Foundations Software provided hereunder. The License provided to Landmark includes the grant of the right to Landmark to prepare and create derivative works based upon, in whole or in part, the Digital Foundations Software solely for purposes of Landmark's internal business operations. All ownership and other rights in and to the Digital Foundations Software and any other related intellectual property rights shall remain vested in nvisia. The license granted herein expressly does not include the right to sub-license, distribute, disclose, or transfer in whole or in part the Digital Foundations Software or any derivative work prepared or created based thereon to any third party, such license being expressly for the Landmark's internal business use only. All updates and enhancements and derivative works made by nvisia consultants on behalf of Landmark to the Digital Foundations Software pursuant to this SOW which do not embody Landmark's confidential or proprietary business information may be retained by and shall be owned by nvisia subject to the Landmark's license.

Approach

This project follows a three-month timeline with monthly milestones and a go / no-go decision at the end of the first month.

	nvisia Key Activities (Roles)	Landmark Key Activities (Roles)
Month 1: Discover, Design and Plan	- Pre-kickoff planning, onboarding and setup (nvisia Delivery and Digital Foundations Architect) - Project kickoff (nvisia Delivery Lead, Client Engagement and Digital Foundations Architect) - Cloud Platform Discovery Sessions (nvisia Delivery Lead, CE and Architect) - Application Development DevOps Discovery Sessions (nvisia Delivery Lead and Architect) - Cloud Architecture and DevOps Roundtable (nvisia Delivery Lead, and Architect) - Solution implementation plan status (nvisia Delivery Lead and Digital Foundations Architect) - Final Readout, Architecture and Roadmap (nvisia Delivery Lead, Client Engagement and Digital Foundations Architect)	- Pre-Kickoff scheduling of resources for Discovery and Roundtable sessions (Landmark project coordinator): 1-2 hours/week - Project kickoff (all Landmark team participants): 1 hour - Cloud Platform Discovery Sessions (Landmark Cloud Architects, Network, IAM, Security representatives): 3 hours/week - Application Development DevOps Discovery Sessions (Landmark App Dev and DevOps leads) 3 hours/week - Cloud Platform Roundtable (Landmark Tech architects and leaders): 1 hour/week - Plan and Roadmap status (Landmark sponsors and stakeholders): 30 minutes/week - Final Readout, Architecture and Roadmap (all Landmark team participants)
Plan review and go/no-go decision point.		

**Month 2:
Hub and Dev
Spoke with
Sample App**

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| <ul style="list-style-type: none"> • Deploy Core Platform Hub deployed, test and documented (nvisia DevOps Engineer, Digital Foundations Architect, and Delivery Lead) • Prepare Azure DevOps projects, permissions, AzDO PAT, policies and repos (nvisia DevOps, Digital Foundations Architect, and Delivery Lead) • Deploy Microservice DEV Spoke (nvisia DevOps, Digital Foundations Architect, and Delivery Lead) • Demonstrate microservice application development cycle | <ul style="list-style-type: none"> • Prepare AD principals, roles and subscriptions (Landmark Cloud Admin): 2-3 hours • Prepare private network connectivity (Landmark Network Engineer and Cisco SD Wan Specialist): 5-10 hours • Azure DevOps Setup (Landmark Azure DevOps project collection administrator, security, compliance): 3-5 hours • Deploy DEV spoke resources with project team root module, IaC shared repos and AzDO Pipeline (Project team admin in AD): 2-10 hours • Understand, prepare and deploy sample App/services (Landmark Lead Developer and DevOps Engineer): 8 hours • Understand how make changes to sample application, deploy it to the dev cluster and validate it (Landmark Lead Developer and DevOps Engineer): 2 hours • Basic AKS Troubleshooting for Developers (Landmark Lead Developer and DevOps Engineer): 2 hours |
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**Month 3:
Staging and
Production Spokes
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Admin, Runbooks
and App Migration
Preparation Topics**

- Deploy Microservice STAGING Spoke (nvisia DevOps, Digital Foundations Architect, and Delivery Lead)
- Deploy Microservice PROD Spoke (nvisia DevOps Engineer, Digital Foundations Architect, and Delivery Lead)
- Build release pipeline for sample application to STAGING and PROD clusters (nvisia DevOps Engineer, Digital Foundations Architect)
- Admin training sessions: Simple changes, use and updated Runbooks (nvisia DevOps Engineer, Digital Foundations Architect)
- Getting developers started with existing K8s applications (nvisia DevOps engineer)
- Deploy STAGING spoke resources with project team root module, IaC shared repos and AzDO Pipeline (Project team admin in AD): 1-2 hours
- Deploy PROD spoke resources with project team root module, IaC shared repos and AzDO Pipeline (Project team admin in AD): 1-2 hours
- Release and deploy sample App/services to STAGING (Landmark Lead Developer and DevOps Engineer): 4 hours
- Release and deploy sample App/services to PROD (Landmark Lead Developer and DevOps Engineer): 2 hours
- Cloud Administrator IaC Training (Landmark Cloud Architects, Network Engineers and Platform Engineers): 16 hours delivered as 4 hour sessions
- Basic Troubleshooting for Platform Admins (Landmark Cloud Architects, Network Engineers and Platform Engineers): 2 hours
- Getting started migrating existing K8s applications to new spoke
- Overview of Kubernetes, Kustomize and Istio

Features in scope

The platform will include the following features:

- Azure Foundations
 - Service Principals Application Registrations for each subscription IaC
 - Custom Roles with least privilege for Digital Foundations operational roles
 - Azure Management Group Hierarchy for Platform and Landingzones
 - Subscription association with appropriate Management Groups
 - Baseline Azure Policies
- Azure DevOps
 - Organization and Project Structure Best Practices
 - Project Permissions, private Build Agents, Service Connections, Approvals, Checks
 - IaC Repos for Platform and Application teams
 - IaC Pipelines created from pipeline templates with isolated Terraform workspaces
 - Shared IaC Terraform Modules and Build Agent Permissions
 - Private SSH Keyfile for VMSS troubleshooting
- Azure Hub-and-spoke architecture
 - Preconfigured at the hub:
 - Platform Management Group
 - TF Base Infrastructure Group
 - Private Agent VMSS – AzDO Private Agent Pool
 - Platform Key Vault with CMK and Private Endpoints
 - Platform Storage Account CMK encryption at rest (Remote Terraform State Files) with Private Endpoints
 - Hub Setup
 - Hub VNET
 - Secure Hub VNET Connection for Spokes
 - Resource Group Isolation for Connectivity, PKI, DNS/Private DNS and DNS Resolvers
 - Scoped User Assigned Managed Identities
 - Public Ips with Azure DNS records
 - Azure Firewall with custom Rules/Policies
 - Azure SD WAN (Option - Cisco Hybrid Connectivity)

- Azure VPN (Optional not needed with SD WAN)
 - Azure Custom Route Tables
 - Custom Subnets
 - Private DNS Zones (Endpoints and Spokes)
 - Hybrid Connectivity Privated DNS Resolver
 - Azure Frontdoor
- Azure spoke / microservice landing zone:
 - Isolated Resource Groups for Application and Data resources
 - Azure AD Admin and Dev Groups
 - Custom Roles for Admin and Dev AD groups
 - Spoke VNET and isolated Subnets
 - Custom Hub FW routing table with Subnet associations
 - VNET Secure Connections to HUB
 - Azure Storage with CMK encryption and Private Endpoints for Spoke Terraform remote state
 - Spoke Key Vault with CMK and Private Endpoints
 - Private Agent VMSS – AzDO Private Agent Pool
 - AzDO Servie connection
 - Azure Application Gateway
 - Spoke scoped private DNS zone with app and AKS infra records
 - AKS private cluster on private subnet with Host Encryption and encrypted disksets
 - AKS namespace management and RBAC
 - AKS User Assigned Managed Identity
 - Istio and Istio Gateway
 - Cert Manager
 - PKI Step Issuer
 - CSI Storage and Secrets
 - Sample application using Istio, Kustomize and Kubernetes

Deliverables and Acceptance Plan

	Key Deliverables	Landmark Acceptance Plan
Month 1: Design and Plan	• Workshop style Discovery Sessions and Roundtables	• Attendance of nvisia lead sessions

	Discovery readout, architecture and roadmap	Acceptance via email by SOW sponsor, Kyle Utley, providing acceptance of the implementation plan and confirmation of the go/no-go decision point.
Month 2: Hub and Dev Spoke with Sample App	- Platform team working and training sessions - Lead developer working and training sessions - Non-prod environment - DevOps pipeline	- Attendance of nvisia lead sessions - Acceptance via email by SOW sponsor, Kyle Utley, Providing confirmation of acceptance of the non-prod environment and that we are cleared to move to production.
Month 3: Staging and Production Spokes -- Admin, Runbooks and App Migration Preparation Topics	- Developer and admin training - Prod IaC environment pipelines - Prod promotion process pipelines - Repositories with infrastructure-as-code artifacts	- Attendance of nvisia lead sessions - Acceptance via email by SOW sponsor, Kyle Utley, confirming acceptance of the final deliverables and the completion of this SOW.

Payment Schedule

The work will be billed at a fixed cost of \$225,000 billed incrementally. The first \$25,000 is charged regardless of the decision made at the end of the first month to proceed. The remaining \$200,000 is billed based on the acceptance criteria specified above.

Milestone	Amount	Payment Terms
Project start	\$25,000	Net 30 days

Upon acceptance of month 1 deliverables & confirmation to proceed	\$100,000	Net 30 days
Upon final acceptance of all deliverables	\$100,000	Net 30 days

Assumptions

This Statement of Work is based on the following assumptions:

- Landmark Credit Union will provide timely access to personnel required for delivering requirements, participating in architecture / design, and providing feedback on deliverables.
- Landmark Credit Union will provide timely access to members of their Infrastructure team, to support architectural planning, the buildout of a test environment in Landmark Credit Union's test environment, and feedback on the release plans.
- Landmark Credit Union will provide timely feedback to all deliverables in this Statement of Work.

Completion Criteria

nvisia shall have satisfied its responsibilities under this Statement of Work when 1) the Deliverables have been provided or accepted in accordance with the CSA; or 2) Landmark timely elects to terminate this SOW as provided herein by not providing the confirmation to proceed (a no at the go/no-go decision point) In the event that Landmark Credit Union elects to terminate this SOW prior to completion but after confirmation to proceed (also referred to as the go/no-go decision point), Landmark shall be responsible for payment of the full balance due under this SOW and shall forfeit as liquidated damages all payments made or due hereunder . For the avoidance of doubt, all invoicing by **nvisia** and payments by Landmark Credit Union shall operate in accordance with the procedures outlined in the CSA.

Effect Of Termination of This SOW

Upon termination or expiration of this SOW for any reason, **nvisia** shall have no obligation to license, install, update, or provide maintenance or support for the iteration of the Digital Foundations Software provided hereunder to Landmark except and only pursuant to further written agreement between the parties in the form of an additional or subsequent Digital Foundations SOW and upon such terms and conditions as they shall agree. Due to the nature of the license and services and as previously noted, Landmark Credit Union cannot cancel this SOW after provision of the confirmation to proceed (also referred to as the go/no-go decision point) . The iteration of the Digital Foundations Software provided to Landmark is provided "as-is" but ancillary services provided hereunder by **nvisia** are warranted and otherwise subject to the terms, conditions and limitations of the CSA.

Agreement Parameters

This section defines the scope of work to be accomplished by **nvisia** under the terms and conditions of the Consulting Services Agreement ("CSA"), signed between **nvisia** and Landmark Credit Union on June 8, 2018. The CSA contains the general contract terms, which will govern the performance of the Services pursuant to the SOW while the Addendum contains specific terms and conditions applicable to the Digital Foundations Software. The CSA addresses payment terms, intellectual property rights, warranty, insurance and other matters. The Addendum contains licensing terms, limitations and disclaimers and other provisions specific to the use and development of Digital Foundations Software. This Statement of Work and the CSA and the Addendum (and any applicable Attachments) represent the complete agreement between the parties regarding this transaction and replaces any prior oral or written communications. Changes to this Statement of Work will be processed in accordance with the procedure described in the CSA.

The investigation and the implementation of changes may result in modifications to the Estimated Schedule, Charges, or other terms of this Agreement.

Under this SOW, **nvisia** will guide, assist and materially contribute to the Project by providing the Services and Deliverables as further set forth herein.

Commitment Signatures

At **nvisia**, **Your Success** is our success. On behalf of everyone at **nvisia**, thank you for the opportunity to present this statement of work to assist with your 2023 initiatives and goals. Should Landmark Credit Union choose to pursue this SOW, once executed, the formalized CSA, Addendum and SOW will govern the relationship and supersede any prior communications.

Approval

By signing below, Landmark Credit Union and **nvisia** agree that the complete agreement between the two companies regarding these Services consists of 1) this SOW, 2) the Addendum, 3) the **nvisia** non-disclosure agreement (or any equivalent agreement signed by both of us) and 4) the CSA. Once signed, any reproduction of this SOW by reliable means (for example, photocopy or facsimile) is considered an original, unless prohibited by local law.

By signing below, Landmark Credit Union also agrees that this proposal will become the SOW effective for this project. No work shall begin under this SOW until an executed SOW and the Addendum is returned to **nvisia**.

If Landmark Credit Union internal processes require a purchase order in order for **nvisia** to invoice for the Services rendered under this SOW, the purchase order (which must reference this SOW number) should be faxed to **nvisia**'s Chicago office at (312) 985-8101 before work commences.

Agreed to and Accepted by

Landmark Credit Union

Kyle Utley

Kyle Utley (May 27, 2023 07:06 CDT)

Signature

Kyle Utley

Name

May 27, 2023

nvisia

Shaun Lovick

Signature

Shaun Lovick

Name

May 27, 2023



Date

Date

Let's Connect. Build. Enable.

nvisia.com

ADDENDUM TO CONSULTING SERVICES AGREEMENT

THIS Addendum to Consulting Services Agreement ("Addendum") is made this 26 day of May, 2023 by and between nvisia llc., a Delaware Limited Liability Company ("nvisia"), and Landmark Credit Union ("Client"). nvisia and Client agree to the terms and conditions set forth below. nvisia and Client are sometimes referred to herein as the "Parties" or individually as a "Party."

WITNESSETH

WHEREAS nvisia is in the business of designing, developing, selling and implementing custom software applications, providing computer programming and related application development services together with various consulting services related thereto to business and other entities who contract with or otherwise engage nvisia for the provision of such services;

WHEREAS Client desires a modern, compliant, secure, scalable and cost-effective enterprise cloud native platform;

WHEREAS nvisia and client are parties to a certain Consulting Services Agreement dated June 8, 2018 (hereinafter referred to as the "Consulting Services Agreement" or "CSA")

WHEREAS nvisia has in a collaborative effort developed an enterprise-quality hub-and-spoke platform, using Infrastructure as Code and continuous delivery pipelines following nvisia's Digital Foundations architecture for use by the Client and nvisia;

WHEREAS for purposes of this Addendum the ongoing development and subsequent release of the Digital Foundations framework is referred to as "Digital Foundations Software" or "Licensed Software;"

Whereas the development of the Digital Foundations Software for Client is being accomplished pursuant to one or more Statements of Work (each a "Digital Foundations SOW") executed by and between nvisia and Client in accordance with the CSA under which nvisia is acting as a consultant to Client and this Addendum;

Whereas nvisia is also developing Digital Foundations Software in cooperation with other clients and partners other than Client who execute agreements substantially similar to this Agreement together with a Digital Foundations SOW;

Whereas by reason of the execution of this Agreement and a Digital Foundations SOW, Client will have access to the services and work product related to Digital Foundations Software developed by nvisia for other clients and partners;

Whereas Client understands agrees and acknowledges that services performed by nvisia for Client pursuant to this Addendum and a Digital Foundations SOW with respect to the Digital Foundations Software development will (except for Client confidential information) be shared and provided to other partners and clients by nvisia to further enhance and advance the collaborative development of Digital Foundations Software, and:

WHEREAS Client wishes to license Digital Foundations Software from nvisia in accordance with the terms and conditions of this Addendum, the CSA and a Digital Foundations SOW as in effect from time to time

NOW, THEREFORE, for and in consideration of the mutual covenants and obligations hereinafter set forth the Parties agree as follows:

1. Scope of Relationship. nvisia shall pursuant to this Addendum and for so long as a Digital Foundations SOW is in effect by and between nvisia and Client provide the services for client identified in the Digital Foundations SOW.

2. Client Services. Client shall from time to time provide such services as shall be identified for performance by Client in a Digital Foundations SOW.

3. License to Client. In furtherance of the Digital Foundations SOW in effect from time to time, and effective upon receipt of payment in full in accordance with the terms of the specific Digital Foundations SOW, Client shall receive a personal, limited, non-exclusive, perpetual, non-transferable, paid up, royalty free source license in and to the software and related documentation for the then current release of the Digital Foundations Software (collectively the "Digital Foundations Software" or the "Licensed Software") to be used solely for Client's internal business operations. All copies of the Licensed Software, in whole or in part, shall contain all nvisia's copyright restrictions and other proprietary notices as they appear on the copies of the Licensed Software, provided hereunder.

The License provided to Client includes the grant of the right to Client to prepare and create derivative works based upon, in whole or in part, the Licensed Software solely for purposes of a Client's internal business operations. All ownership and other rights in and to the Licensed Software and any other related intellectual property rights shall remain vested in nvisia. The license granted herein expressly does not include the right to sub-license, distribute, disclose, or transfer in whole or in part the Licensed Software or any derivative work prepared or created based thereon to any third party, such license being expressly for the Licensees' internal business use only. All updates and enhancements and derivative works made by nvisia consultants on behalf of the Client to the Licensed Software pursuant to a Digital Foundations SOW which do not embody Client confidential or proprietary business information may be retained by and shall be owned by nvisia subject to the Client's license.

THE LICENSED SOFTWARE IS PROVIDED BY NVISIA TO CLIENT ON AN "AS IS," "WHERE IS" BASIS, WITHOUT ANY IMPLIED WARRANTIES OF ANY KIND, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. CLIENT AS A LICENSEE ASSUMES THE ENTIRE LIABILITY FOR THE SELECTION AND USE OF THE LICENSED SOFTWARE, AND NVISIA SHALL HAVE NO LIABILITY FOR ANY ERRORS, MALFUNCTIONS, DEFECTS OR LOSS OF DATA RESULTING FROM OR RELATED TO THE USE OF THE LICENSED SOFTWARE.

4. Ownership by nvisia. Except as otherwise provided in paragraph 3 with respect to the license granted to Client, all original components including programs, applications, and all codes (source code and related configurations) and other programming documentation originated and prepared in connection with the current release of the Digital Foundations Software as well as all updates, enhancements and derivative works thereof shall belong exclusively to nvisia. All copies of the Digital Foundations Software, in whole or in part, shall contain all nvisia's copyright restrictions and other proprietary notices. Client acknowledges that nvisia may license, transfer, sell, assign and share the Digital Foundations Software upon such terms and conditions as nvisia may in its sole discretion determine and without restriction except that nvisia shall not disclose Client confidential or proprietary business information in connection therewith.

5. Confidential Information. Except as otherwise provided for herein including but not limited to nvisia's ownership rights in paragraph 4 hereof, the Parties acknowledge and agree that all material prepared, created or exchanged by the Parties in furtherance of

this Addendum, the contemplated services to be performed by each Party in accordance with a Digital Foundations SOW and the development of the Digital Foundations Software (including but not limited to the current iteration of the Digital Foundations Software) is deemed and recognized as reflecting and incorporating confidential information (such information being collectively referred to as "Confidential Information") and is to be held and treated by each of the Parties in strict confidence in accordance with the provisions of the CSA.

6. Infringement: nvisia warrants to Client that its development of the Digital Foundations Software hereunder shall not infringe any copyright registered in the United States Copyright Office as of the effective date of this Addendum. This warranty does not apply to infringement arising out of a Client's use of the Digital Foundations Software in combination with any materials not furnished by nvisia pursuant to this Addendum or a Digital Foundations SOW, Client's use of the Digital Foundations Software in a manner for which it was not designed or modifications to the Digital Foundations Software by Client or a third party.

Remedy: If the provision or discharge of any element of the Digital Foundations Software is enjoined as a result of any claim arising out of a breach of this warranty, nvisia shall, at its option and expense and as a Client's sole remedy: (a) procure the right to continue to use such element; (b) replace such element with a comparable service which is non-infringing; or (c) modify the Digital Foundations Software so that it becomes non-infringing.

7. Warranty Disclaimers and No Support Obligations. Except as specifically and expressly provided herein as to nvisia's infringement obligations, nvisia makes no representation or creates any warranties, express or implied, concerning the Digital Foundations Software provided hereunder. All services provided by nvisia hereunder including the current iteration of the Digital Foundations Software provided to Client are provided "AS-IS", "WHERE IS." nvisia has no duty to update or supplement any services, information or documentation provided with respect to the Digital Foundations Software except to the extent expressly provided by a Digital Foundations SOW. nvisia has no obligation to license, install, update, or provide maintenance or support for the any iteration of the Digital Foundations Software to Client except and only pursuant to a separate Digital Foundations SOW. NO OTHER WARRANTIES OF ANY KIND, WHETHER STATUTORY, WRITTEN, ORAL OR IMPLIED (INCLUDING WARRANTIES OF FITNESS FOR A PARTICULAR PURPOSE OR MERCHANTABILITY), SHALL APPLY TO THE DIGITAL FOUNDATIONS SOFTWARE.

8. Limitation of Liability. In the event of the failure of any Party to fulfill any of its respective obligations under this Addendum the provisions of Article VI of the CSA shall be applicable.

9. Term. This Addendum shall be effective as of the date first written above and thereafter shall remain in effect until termination of any Digital Foundations SOW by and between nvisia and Client without an extension or renewal thereof.

10. Governing Law. This Addendum shall be governed by and construed in accordance with the laws of the State of Illinois as though all acts or omissions related hereto occurred in such state. The Parties agree that all actions arising out of or relating to this Addendum shall be brought exclusively in the state or Federal courts located in Cook County, Illinois. All Parties specifically consent to the jurisdiction of such courts.

11. Freedom of Action. Nothing in this Addendum shall be construed as restricting or preventing any Party from independently developing, acquiring, or marketing any product, service or software which is in any way competitive with the Digital Foundations Software to be developed hereunder or any other product or service provided or offered by any other Party to this Addendum.

12. Integration and Amendment. This Addendum contains the complete agreement between the Parties with respect to the subject matter hereto. All previous and collateral agreements (including letters of intent, requests for or responses to proposals, or the terms and conditions of any communications), representations, warranties, promises and conditions relating to the subject matter of this Addendum are superseded by this Agreement. Any understanding, promise, representation, warranty, or condition not incorporated in this Addendum shall not be binding on any Party. This Addendum may only be amended by a writing signed by all Parties. For absence of doubt this Agreement is controlling over the terms and provisions of the CSA or SOW with respect to the same subject matter. In the event of any conflict or inconsistency between the terms of this Addendum and any other Agreement between the parties regarding the same subject matter, the following order of priority shall govern and control: this Addendum, any Digital Foundation SOW and then the CSA.

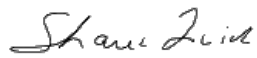
13. Assignment. No Party shall assign or subcontract the whole or any part of this Addendum without the prior written consent of the other Parties.

14. Survival. Paragraphs 3, 4, 5, 6, 7, 8, 14 and 15 shall survive the termination of this Addendum.

15. Notices. All notices, consents and approvals and other communications hereunder shall be in writing and shall be served on the Parties at the addresses and in the manner set forth in the CSA.

IN WITNESS WHEREOF, the Parties have executed this Addendum as of the date first written above.

nvisia llc



By: Shaun Lovick

Landmark Credit Union


Kyle Utley (May 27, 2023 07:06 CDT)

By: Kyle Utley